

Issued By: Img on 7-8-26.
(Judge's initials) (Date)

(34)

Tentative Ruling

Re: **Lonnie Tiner v. John Doe**
Superior Court Case No. 24CECG00762

Hearing Date: July 9, 2026 (Dept. 502)

Motion: Motion to be Relieved as Counsel

Tentative Ruling:

The court intends to deny plaintiff counsel's motion to be relieved as counsel, without prejudice.

Explanation:

The proof of service for the moving papers indicated the client was served by electronic transmission. "If the notice is served on the client by electronic service under Code of Civil Procedure section 1010.6 and rule 2.251, it must be accompanied by a declaration stating that the electronic service address is the client's current electronic service address." (Cal. Rules of Court, rule 3.1362(d)(2).) The declaration filed with the motion indicates the client was served by mail and the address was confirmed in the last 30 days by telephone but does not specify whether the electronic service address was confirmed.

Additionally, the proof of service does not comply with the requirements of Code of Civil Procedure section 1013b which requires the identification of the electronic service address of the person sending the documents and that of the person receiving the documents. (Code Civ. Proc., § 1013b, subd. (b)(1), (3).) A code-compliant proof of service is required.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

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